

The Claremont City Council held a meeting on Wednesday, July 28, 2021, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present:

At-Large Councilor Dale Girard
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Debora Matteau
At-Large Councilor Nicholas Koloski
Ward II Councilor James Contois
Ward III Councilor Jonathan Stone

Absent:

Ward I Councilor Andrew O'Hearne
At-Large Councilor Michael Demars

Also present:

Edward Morris, City Manager
Lisa Richmond, Finance Director

AGENDA CHANGES

Mayor Lovett said she was not able to put information in the packet for the Sustainable Workforce Compensation Discussion. Council agreed to have a discussion with no public comment.

REPORT OF THE SECRETARY

A motion was made by Councilor Matteau and seconded by Assistant Mayor Damren to accept the minutes of the July 14, 2021, City Council meeting, as amended.

Councilor Girard noted on page one that not all of the Councilor votes were recorded. Also, on page 17 Councilor Stone made the motion to table, not Councilor Contois.

Roll call vote:

Girard - yes

Damren - yes

Matteau - yes
Koloski - abstain
Contois - yes
Stone - yes
Lovett - abstain
Motion carried 5-0, 2 abstain.

MAYOR'S NOTES

- This Friday at the Visitors Center is the dedication of the bench and pollinator garden for Kurt Beek, former City Project Manager
- Saturday there will be a mobile vaccination clinic at the Visitors Center Green
- Thanked all who attended the ceremony for the return of the Amtrak Vermonter after a 17-month hiatus. They are looking for volunteers to act as station hosts. Call her or Sharon

CITY MANAGER'S REPORT

- **Sugar River Region Destination Council** – The newly developed Sugar River Region Destination Council (SRRDC) is coordinated by Sullivan County and is made up of business leaders and representatives from many communities throughout Sullivan County. They have been discussing strategies to identify, build, and promote the cultural and recreational assets of each community to promote the region as a destination to build sustainable tourism. SRRDC has also made it its mission to maximize and coordinate the use of these assets to increase the quality of life for those who live here. The County has received a \$27,000 USDA grant to help with this effort. In addition to this grant, he has worked with Derek Ferland, County Manager, and the Upper Valley Lake Sunapee Regional Planning Commission (UVLSRPC) on a regional trails initiative. A grant has been received through the UVLSRPC for \$10,000 to inventory, plan, and map regional recreation trails that can be used by the SRRDC.
- **New Hampshire Office of Outdoor Recreation Industry** - He met with Scott Crowder, the Director of the New Hampshire Office of Outdoor Recreation Industry Development. This is a newly appointed position that is charged with everything from conservation and stewardship to economic development (including business promotion, travel and tourism, infrastructure, and education). He let Mr. Crowder know about the Eastern States Cup Mountain Bike Race coming to Claremont in August, which is already drawing people from all across New England to ride the new trails. Mr. Crowder is excited about all the things happening here in Claremont and plans to visit in the near future. Mr. Morris looks forward to working with the State of New Hampshire to maximize our stewardship and development efforts through the use of our outdoor recreation assets.
- **Heritage Commission** – Councilor Koloski, Planning and Development Director Nancy Merrill, deForest Bearse, and he met to discuss the creation of a Heritage Commission.

David Messier was unable to make the first meeting, but he will be joining in on future meetings. They worked to define what the duties would be and how the Commission might be organized to complete both the land use functions of the Historic District Commission for properties located within the Historic District, while also overseeing the City's cultural assets, both historic and new. Part of this charge would also be creating a process for static art or displays that will be publicly displayed in the City. The discussion ended with agreement that other Heritage Commissions will be researched that have absorbed the duties of their Historic District Commission in order to understand how they balance the duties, set up their Commission participants, and review the ordinances and bylaws of the commissions. They plan to meet again in early to mid-August.

- **Pleasant Street** - On Tuesday July 20, 2021 the traffic pattern for Pleasant Street and Glidden Street were changed to one way traffic. The crews have now blocked the old westbound lane of Glidden Street to help get people used to not traveling west down Glidden, since there were people continuing to turn on to Glidden heading the wrong direction. Overall, the traffic pattern change is going well.

From a construction standpoint, the crews continue to lay the temporary waterline down the west side of Pleasant Street, and they have begun cutting the pavement to lay a temporary water line down the east side of the street.

The crews will keep one lane of traffic open along Pleasant Street during construction, and the City will continue to monitor parking downtown.

Mr. Morris talked about finishing painting the crosswalk in front of Post Office. Public Works is working to install a handicap ramp there. Also, a couple of speed tables will be installed at the Post Office.

- **FEMA Reimbursement Update** – As of the time of this report, the City has received \$127,635.13 in FEMA reimbursements for COVID-19. The City has just submitted another reimbursement request for \$78,288.18, and we are awaiting approval. He thanked Amanda Benoit, for her work in collecting data from each department, coordinating the data, and working with FEMA to complete these reimbursement requests.
- **147 Main Street** – At this time, we do not have an estimated completion date for 147 Main Street, but the project did get delayed for two reasons. First, there was lead paint identified in the building and they decided to complete a lead abatement process. Second, the City's building inspector found an issue with the construction that is being addressed by the contractor and architect to ensure the building is safe and up to current code. He will get more information and update the City Council in the near future.
- **COVID-19 Update** – New Hampshire and Claremont continue to have low active COVID-19 rates. Claremont currently has less than 4 active cases with Sullivan County having 5 cases. The Delta Variant is still rare in New Hampshire, but the City will

continue to monitor COVID-19 cases in our area. We continue to encourage residents to get vaccinated and to wear masks in accordance with CDC guidelines:

- If you are not fully vaccinated and aged 2 or older, you should wear a mask in indoor public places.
- In general, you do not need to wear a mask in outdoor settings, unless you live in an area with high COVID-19 numbers.
- Fully vaccinated people can resume activities without wearing a mask or physically distancing, except where required by federal, state, local, tribal, or territorial laws, rules, and regulations, including local business and workplace guidance
 - If you are fully vaccinated and have a condition or are taking medications that weakens your immune system, you may need to keep taking steps to protect yourself, like wearing a mask. Talk to your healthcare provider about steps you can take to manage your health and risks.

The state has gone from 35 active cases to 63 active cases as of yesterday. Sullivan County has 8 active cases. No data was available for the City level. The infection rate is over 1%. Two vaccination clinics are scheduled: Saturday, July 31, 11:00 a.m.-1 p.m. at the Visitors Center Green, and Monday, August 2, 10:00 a.m.-1:00 p.m. on the Fire Department ramp.

Councilor Matteau said she was concerned that children under 12 years old cannot get the vaccine.

Councilor Girard asked about signage for the truck route. Mr. Morris said the engineer is finalizing the sign packages with the NH Department of Transportation (NHDOT). Signage will be posted before the work starts. Southbound traffic will go down North Street, and then back up Main Street to Union and Mulberry, and then out toward Charlestown Road. The northbound traffic will turn at South Street and then come up Broad Street onto Washington Street.

Councilor Contois asked about the RFP that was in the paper yesterday for removing the concrete on Old High Bridge Road. This road was not on the road plan that was given the Council in March. He asked where the money will come from. He said there are five taxpayers who live on that dead end road.

Mr. Morris said that it is listed as the worst road in Claremont. It was not put on the list because of the traffic flow part of the equation. He and Public Works are looking at changing that, so that those worst roads will still be paved. A lot of money was added into the budget, which was more than was planned as part of the current road plan. The plan is to remove the concrete and to pave the road.

Mayor Lovett commended Mr. Morris for reaching out to the NH Office of Outdoor Recreation Industry Development to let them know what we have in Claremont. She gave a shoutout to Rob Walker at the Cycle Depot, as she believes he was instrumental in getting the race to Claremont.

Mr. Morris said yes, he was instrumental in getting the race to Claremont and also instrumental in not only building trails, but also bringing in trail builders to help build the trails on Arrowhead.

Mayor Lovett asked about the rails under Pleasant Street. Mr. Morris said they have not been found, but the contractor is well aware of them (the information is in the RFP).

Councilor Koloski talked about spam emails supposedly coming from the Mayor; the address is: mayor9@gmail.com.

CITIZEN'S FORUM

John Calkins, Managing Partner for Topstone, asked the Council to reconsider its decision regarding his application for a CDBG planning grant that was not approved by the Council at its July 14, 2021, meeting. He said he was not able to be at the meeting and the Council did not have all the information. He wanted to be clear that he asked the grant writer and Planning and Development Director Nancy Merrill if he should be at the meeting and both said no. He was sent a Zoom invite. He was stuck in traffic for 2 ½ hours and when he was finally able to join by Zoom, he could see the meeting, but he couldn't speak. He noted there were a couple applications presented to the Council that night and that the applicants were not present, but those application requests were granted. There was another application for a planning grant, but that applicant was not present, so the item was tabled. He asked Council to reconsider his application.

Mr. Calkins talked about the supposed contamination problems at his property. There is an 847-page brownfield report that says there is contamination across the street, not on his property. He said regarding affordable housing, you have to get an estimate first and then discuss it with the state. It may be that the project has to be market rate rents.

At 7:03 p.m., Councilor Koloski stepped down from the Council table.

Nick Koloski, Ward 3 resident, said he was not at the last Council meeting, but he listened to it. He occupies a part of the Topstone building. There were groundwater wells put in and the reports show that it is not Topstone's issue, but that it is coming from offsite. Regarding indoor air quality, NH DES said there are no problems.

At 7:08 p.m., Councilor Koloski returned to the Council table.

A motion was made by Councilor Contois and seconded by Councilor Matteau to reconsider Mr. Calkins request to apply for a CDBG planning grant.

At 7:10 p.m., Councilor Koloski recused himself and left the Council table.

Roll call vote:

Girard - yes

Damren - yes

Matteau - yes

Koloski - abstain

Contois - yes

Stone - no

Lovett - yes

Motion carried 5-1, 1 abstain.

Ms. Merrill said a certain amount of time is needed for advertising the public hearing, so she recommended this go on the August 25th agenda. Council agreed.

At 7:14 p.m., Councilor Koloski returned to the Council table.

OLD BUSINESS

Ordinance 583 Zoning Ordinance Amendment – Article X Solar Ordinance – Second Reading – Public Hearing

The purpose of this proposed action is to amend the existing zoning provisions in the Claremont City Code (Chapter 22) to address solar energy collection systems. The proposed provisions would create standards and procedures for the review and permitting of a variety of residential, commercial and industrial solar uses in appropriate locations in the City, balancing development goals with the protection of the public's health, safety and welfare.

Enactment of this Ordinance will revise Chapter 22, Zoning, by adding a new section to be numbered Article X, Solar Ordinance. This change was requested by the Energy Advisory Committee.

Ms. Merrill said this is the second reading. Currently there is nothing in the zoning ordinance that permits solar.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

A motion was made by Councilor Girard and seconded by Councilor Matteau to suspend Council Rules to not have to read Ordinances 583, 589, and 590 into the record.

Roll call vote:

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes
Lovett - yes
Motion carried 7-0.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to adopt Ordinance 583 Zoning Ordinance Amendment – Article X Solar Ordinance.

Assistant Mayor Damren read the Explanation of Proposed Action into the record.

Roll call vote:
Girard - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 7-0.

Access to Stevens Brook Trail – Conservation Commission Update

deForest Bearse, Resource Coordinator and Staff member for the Conservation Commission, showed a PowerPoint presentation, “Stevens Brook Conservation Easement North Street Access June 23, 2021. This has no frontage on a public right-of-way. She gave a summary of the different proposals. During Technical Review, concerns were raised about the proximity of the access to the sharp curve and steep hill on North Street. Plan B moved the curb cut to parcel 95-27, but parallel to Osgood easement, with parking on the same parcel. Plan B was presented to the Traffic Advisory Committee on May 18, 2021. On June 3, 2021, Conservation Commission Chair Gary Dickerman, Ms. Bearse and Public Works Director Alex Gleeson met on site and came up with Plan B-2 which provides maximum distance from the curve and hill on North Street and an area of least ground disturbance for the access drive and parking.

Public Works will create the access from North Street and will make an informal parking area just off the street. There is sufficient room for cars to turn around before exiting the property. The Commission will install a gate across the road as a preventative measure and Mr. Gleeson has agreed to allow the Commission to post a sign at the entrance, identifying Stevens Brook Conservation Easement.

If permission is granted, the Commission will re-engage their surveyor to delineate a path from North Street to the Haugsrud property path. They will post a sign at the point where pedestrians must cross the Osgood 30-foot-wide easement.

Mr. Dickerman expects there would be only 3 or 4 cars in the parking area, at most.

A motion was made by Councilor Girard and seconded by Assistant Mayor Damren that

WHEREAS on April 13, 2011, the Claremont City Council authorized the City Manager or his designees to take all such actions as may be required on behalf of the Claremont Conservation Commission to obtain a perpetual conservation discretionary easement pursuant to RSA Chapter 79-C across property owned by Thurloe Kensington Corporation for the purpose of preserving approximately 9-plus acres of open space for compensatory mitigation under state wetlands rules; and

WHEREAS Thurloe Kensington Corporation assigned its interest in the property to Thurken I LLC and increased the amount of property to be placed into the conservation discretionary easement to approximately 21 acres; and

WHEREAS the perpetual conservation discretionary easement deed is recorded in the Sullivan County Registry of Deeds at Book 1817, Page 77;

WHEREAS the Stevens Brook Conservation Area Management Plan was created on August 5, 2011 with water and wildlife quality protection and low-level impact recreation as its primary functions, to include hiking, bird watching, fishing, and snowshoeing;

WHEREAS the purpose of this plan and of the acquisition of the conservation easement on the property cannot be fulfilled because of lack of permanent public access;

THEREFORE the Claremont City Council hereby authorizes the City Manager or his designees to authorize public access to the Stevens Brook Conservation Area through a new curb, entrance and small parking area on city owned parcel Map Lot 95-27 and a new pedestrian trail on the north side of city owned parcel Map Lot 83-2, and further authorize and intend that any future sale of either city-owned lot reserve for the City, permanent access rights of way as reasonably necessary to ensure continued future public access to the conservation area.

Roll call vote:

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 7-0.

Gary Dickerman, Conservation Commission Chair, gave recognition to Ms. Bearse for all the work she has put into this project.

Donation Policy Approval

Proposed policy:

Donations

This section is for the purpose of setting guidelines and limitations of cash and non-monetary donations received by the City of Claremont.

Monetary Donations:

The Claremont City Council authorizes the City Manager or his/her designee to apply, accept and expend, without further action from the City Council, unanticipated revenue or grants from State, Federal, or other governmental units or from private sources of less than \$10,000 in accordance with RSA 31:95-b.

Unanticipated monies in an amount equal to or exceeding \$10,000 may only be accepted by a majority vote of the City Council after a duly noticed public hearing.

Personal Property Donations:

The Claremont City Council authorizes the City Manager or his/her designee to accept gifts of personal property with a value of less than \$5,000, other than land, which may be offered to the City of Claremont for any public purpose in accordance with RSA 31:95-e.

Personal Property, with a value equal to or exceeding \$5,000 may only be accepted by a majority vote of the City Council after a duly noticed public hearing.

No acceptance of any personal property under the authority of this section shall be deemed to bind the City to raise, appropriate or expend any public funds for the operation, maintenance, repair, or replacement of such personal property.

Land donation:

All land donated to the City of Claremont must be accepted by a majority vote of the City Council after a duly noticed public hearing.

Reporting:

Donations accepted under this policy will be reported to the City Council at least quarterly.

Mr. Morris said that he had a discussion with Attorney Tanguay regarding policy versus ordinance.

What he would like the Council to look at is for the Policy Committee to look at ordinances that have been codified, but should be policies. Changes to policies would be less costly than paying the legal fees for changes to ordinances.

Attorney Shawn Tanguay joined the meeting via Zoom and said that he believes ordinances are local legislation/laws of Claremont. Laws should be those that impact the public. When talking about the inner workings of the City's administration or various departments, he would recommend they be policies (tools for employees and local officials). They typically require constant change. He suggested to the Council that anything involving the inner workings of the City that impacts its employees or officials, in terms of how they are to perform their duties or how they are to act accordingly to the City's rules and regulations, should be in the manner of policies as opposed to local legislation.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to adopt the Donation Policy as a policy.

There was a discussion about recognition for donations. Mr. Morris said he would never deny anyone the opportunity to make their donation in public.

Roll call vote:

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 7-0.

CDBG Planning Grant Application

The City proposes to submit an application for funding titled Community Development Block Grant (CDBG) Planning application for up to \$25,000 from its application authority for 2021 to the NH Community Development Finance Authority for Nick Koloski at 3 Princeton Street to study the feasibility of four new housing units and upgrades to three additional housing units.

- a. Motion to Approve Application for Grant – Public Hearing

At 7:40 p.m., Councilor Koloski left the Council table

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to take CDBG Planning Grant Application for 3 Princeton Street off the table.

Roll call vote:

Girard - yes

Damren - yes

Matteau - yes

Koloski - abstain

Contois - yes

Stone - yes

Lovett - yes

Motion carried 6-0, 1 abstain.

Mayor Lovett said Community Development Block Grant funds are available to municipalities through the NH Community Development Finance Authority. Up to \$500,000 annually is available for economic development projects, up to \$500,000 for public facility, up to \$500,000 for housing projects, and up to \$500,000 for emergency activities. Additional CDBG-CV are available for projects for the prevention of, preparation for, and response to COVID-19. Up to \$25,000 is available per planning study grant. All projects must directly benefit a majority of low and moderate income persons.

Ms. Merrill talked about CDBG and that the municipality or county can apply. This is a request for the municipality to apply on behalf of a third party. This is a request for a city application. The grant writer writes the grant and CDFA reviews it. She noted this is a competitive process. Low moderate income verification in Sullivan County is: single up to \$47,800; 2 people up to \$54,600; 3 people up to \$61,450; 4 people up to \$68,250.

Mayor Lovett said this is a proposed 2021 CDBG Planning Grant Application, up to \$25,000 for Nick Koloski, 3 Princeton St. The funds to be used for a feasibility study for 4 new units of housing and 3 upgrades to existing units. The majority of the housing would be affordable housing.

Nick Koloski, Ward 3, said he was told that he didn't need to be at the last meeting. He asked that Councilor Stone recuse himself, because his business partner had offered to purchase Mr. Koloski's property, tear down the building and then join the two properties with a car dealership below. There was a recent exchange on What's Up Claremont between himself and Councilor Stone related to the Topstone building.

Councilor Stone clarified that his partners are owners of Arrowhead Motors and they own the apartment building next to Mr. Koloski's apartment building.

Because Councilor Stone's partners offered to purchase Mr. Koloski's property, Mr. Koloski said he was not comfortable with Councilor Stone hearing his application. Mr. Koloski asked, as the applicant, if Councilor Stone would recuse himself. Councilor Stone said he would like to hear if there is a legal basis for recusal. Mayor Lovett asked if Attorney Tanguay would rejoin the meeting.

Mr. Koloski said this is a request to apply for up to \$25,000. He said there is a need for housing in Claremont. He is not a millionaire. He owns land that would be suitable to add onto. Regarding low to moderate income, that covers a lot of people in Sullivan County. He would like to show people that anyone can do this. He will be looking at a \$1 million mortgage for this project. In the future, he hopes more people will look at smaller projects.

After hearing what Mr. Koloski had to say, Councilor Contois said he may have changed his position.

Attorney Tanguay returned to the meeting via Zoom. Mayor Lovett and Mr. Koloski explained Mr. Koloski's request that Councilor Stone recuse himself.

Attorney Tanguay talked about the juror standard and whether or not someone would gain or lose on the pending matter. As solely business partners, he said he was not sure that would extend to Councilor Stone.

Mayor Lovett opened the public hearing and invited the public to speak.

Patrick Adrian, Ward 1, asked who covers the administrative costs whether approved or not approved.

Ms. Merrill said our grant writer is paid from the proceeds of the grant, if not awarded, there are no costs.

Mayor Lovett closed the public hearing.

A motion was made by Councilor Matteau and seconded by Assistant Mayor Damren that the Claremont City Council hereby approves the submission of a Planning Study Community Development Block Grant application for 3 Princeton Street to the New Hampshire Community Development Finance Authority in an amount not to exceed \$25,000 (consistent with public hearing notice) and to further authorize the City Manager to sign and submit the application, and upon approval of the CDBG application, to authorize the City Manager to execute any documents which may be necessary to effectuate the CDBG contract and any other amendments thereto.

Roll call vote:

Girard - yes

Damren - yes

Matteau - yes

Koloski - abstain

Contois - yes

Stone - no

Lovett - yes

Motion carried 5-1, 1 abstain.

- b. Motion to Approve Residential Anti-Displacement and Relocation Plan for the proposed application – Public Hearing

Mayor Lovett said the Planning Study project is to Determine Feasibility of Increased and Improved Housing at 3 Princeton Street. No displacement or relocation is anticipated. CDBG must follow the Uniform Relation Act if any displacement or relocation occurs.

Mr. Koloski said currently the building has three units (two tenants and himself). Displacement is not anticipated.

Mayor Lovett opened the public hearing and asked if anyone wished to speak. No one spoke. She closed the public hearing.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau that the Claremont City Council hereby moves to adopt the City's Residential Anti-Displacement and Relocation Assistance Plan for the proposed planning study to determine feasibility of increased and improved housing at 3 Princeton Street.

Roll call vote:

Girard - yes

Damren - yes

Matteau - yes

Koloski - abstain

Contois - yes

Stone - no

Lovett - yes

Motion carried 5-1, 1 abstain.

NEW BUSINESS

UVLSRPC Presentation

None

City Tree Policy

The Forest Resources section of the Natural Resources chapter of the 2017 Master Plan discusses the value of the City's urban trees and calls for their careful stewardship through appropriate policies and guidelines. The Conservation Commission has created a proposed Tree Policy to fulfill that objective.

The Policy outlines the procedure and practices to be used in routine protection, maintenance, management, control, and removal, as may be necessary, of vegetation, including trees, in, on, below and over the City's public streets and sidewalks; cemeteries; and parks and recreation areas. It delegates authority for oversight of the trees within these defined areas.

(This Policy does not address trees in the city's designated forests as those are under the jurisdiction of the Forest Management Plan.)

This Policy has been reviewed and accepted by the Directors of the Public Works Department, Planning and Development, and Parks and Recreation. It was also reviewed and accepted by the Policy Committee at their April 20, 2021 meeting.

While the policy defines certain activities as unlawful, it contains no method of enforcement. This is because the author felt it best to defer the writing of any enforcement actions to the City's legal team.

The purpose of tonight's presentation is to introduce the policy to the Council and call for changes as needed before it is sent for legal review and drafting of any appropriate enforcement proceedings. The policy will be returned to the Council for final review and, if appropriate, adopted as an ordinance.

Ms. Bearse gave a summary of the Tree Policy.

Councilors asked clarifying questions and received answers. City Center trees are overseen by the Planning and Development Department because they are a part of the downtown core and many issues arise from businesses in the area. Regarding authority, if needed, different departments will work together regarding the trees.

Ms. Bearse said the purpose is to preserve the health of the City's trees to the extent possible and to use removal only as a last resort. Emergency situations may override the policy.

Mr. Morris said he will work with Public Works and the Conservation Commission to clarify Section 5(a). Declaration of Hazard or Nuisance. In Section 8. It states "The City maintains 288± lane miles..." He will change it to state "The City maintains many miles..."

Mayor Lovett said she heard that the Councilors agree the Administration should move forward with legal counsel to draft this into an ordinance including the changes as stated.

Ordinance 589 Police Commission – First Reading

The City of Claremont's Police Commission is a unique creature of statute in that its origin arises out of a special act of the State Legislature rather than, the City's Charter or RSA 105-C. Consequently, this special act of the Legislature controls the various aspects of the Claremont Police Commission's creation and operation as well as preempts most local regulation of this particular political body of the City. As a result, the provisions of Chapter 2, Article II, Division 10 of the City's Code serve as a recitation of said special act of the Legislature. Just recently, the State Legislature, once again, amended this special act in changing the appointment authority of the Commissioners of this body from the City Manager to that of the City Council.

The City's effort with this amendment is to recognize and incorporate, within the City's Code, this statutory change that is required of the City concerning the appointment authority for the Claremont Police Commission. This change is requested by the City Manager.

Mayor Lovett gave some background about how the change was requested.

A motion was made by Assistant Mayor Damren and seconded by Councilor Koloski to adopt Ordinance 589 Police Commission on First Reading.

Assistant Mayor Damren read the Explanation of Proposed Action into the record.

Roll call vote:

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 7-0.

Ordinance 590 Alcoholic Beverages – First Reading

The purpose of this proposed change is to amend this particular section of the City's Code in order to remove the limitation of vending and/or serving of food and drink, in any City park, to only nonprofit organizations. The new language would allow any member of the public, regardless of their association or not with a nonprofit association, to pursue permission with the City to allow the sale or service of food/drink at these sites. In addition, the amendment extends the location for the sale or service of beer and wine to within a 200-foot radius of the lodge located at the Arrowhead Recreational Area.

The City's effort with this amendment is to merely increase the ability of the general public to have food/drink service at these public areas and to increase the area in which beer/wine service is allowed in the vicinity of the Arrowhead Recreational Area lodge in order to facilitate more options for the public utilizing this building. This change is requested by the City Manager.

Mr. Morris said this is being requested in order to move beer and wine service to within a 200-foot radius outside the lodge at Arrowhead.

A motion was made by Councilor Matteau and seconded by Councilor Girard to adopt Ordinance 590 Alcoholic Beverages on First Reading.

Councilor Matteau read the Explanation of Proposed Action into the record.

Roll call vote:

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 7-0.

Sustainable Workforce Compensation Discussion

Mayor Lovett said this is a complex issue and she asked if Councilors were interested in digging into this with an ad hoc committee or to hold a separate meeting.

After discussion, Councilors agreed to meet Wednesday, August 18, 6:00 p.m.

Mr. Morris said he was ready to bring back the ordinance for adjusting the Merit Plan pay scale. Council agreed to wait. Mr. Morris said he would bring it back in September.

Zoom Discussion

Mr. Morris said the cost of using Zoom is \$55/month. The cost to have Rebecca Vinduska host Zoom during the meeting is approximately \$3,600 a year for overtime. During COVID, she flexed her schedule to run Zoom, but he needs her to be able to do her job, so running Zoom would have to be done with overtime hours.

Councilor Stone suggested the Sergeant at Arms (Councilor O'Hearne) could moderate and he said Councilor O'Hearne had agreed to do it.

Mr. Morris said during COVID, having someone monitor the phone in case a viewer had a problem logging on was a regulation. But, this is being put out as convenience, so phone monitoring will not be a requirement.

Mr. Morris will work with Lisa Richmond to prepare a resolution for funding the overtime.

After some discussion, Mayor Lovett said Councilors were unanimous in wanting this tool to be available to the public. She asked for a show of hands to have the responsibility delegated to Councilor O'Hearne; three: Councilor Stone, Councilor Matteau and Mayor Lovett.

Councilor Stone said he wanted to have this discussion to determine whether or not the Zoom platform would be used for everyone or for no one.

Mayor Lovett confirmed the majority of the Council wanted to give the responsibility to Rebecca Vinduska. The City Manager will take the action needed to transfer the funds from Fund Balance.

Proposed Council Rule Change

Current

Ordinances shall not be passed until they shall have been read twice, the first and second readings to be on separate days at regular special meetings of the Council, unless otherwise required. The second reading to be only after advertisement of the ordinance and public hearing.

No ordinance shall be revived or reenacted by mere reference to the title thereof, but the same shall be set forth at length as if it were an original ordinance. No ordinance shall be amended by providing that designated words thereof shall be stricken out and others inserted in lieu thereof, but the ordinance or section as amended shall be set forth in full.

Changes:

Ordinances shall not be passed until they shall have been read twice. ~~(s)~~ At the first reading the explanation of proposed ordinance or the ordinance in its entirety may be read. ~~(and)~~ At the second reading, ~~(s)~~ the entirety of the ordinance will be read, prior to the public hearing, which is to be held on a separate day ~~(s)~~ at regular ~~(special)~~ meeting ~~(s)~~ of the Council, unless otherwise required. The second reading to be only after advertisement of the ordinance and public hearing.

No ordinance shall be revived or reenacted by mere reference to the title thereof, but the same shall be set forth at length as if it were an original ordinance. No ordinance shall be amended by providing that designated words thereof shall be stricken out and others inserted in lieu thereof, but the ordinance or section as amended shall be set forth in full.

New

45. - Readings.

Ordinances shall not be passed until they shall have been read twice. At the first reading the explanation of proposed ordinance or the ordinance in its entirety may be read. At the second reading, the entirety of the ordinance will be read, prior to the public hearing, which is to be held on a separate day at regular meeting of the Council, unless otherwise required. The second reading to be only after advertisement of the ordinance and public hearing.

No ordinance shall be revived or reenacted by mere reference to the title thereof, but the same shall be set forth at length as if it were an original ordinance. No ordinance shall be amended by providing that designated words thereof shall be stricken out and others inserted in lieu thereof, but the ordinance or section as amended shall be set forth in full.

Red – removed from original **Blue** – Added to the original

Councilor Girard had distributed this proposal to the Council at the last Council meeting. He gave an explanation for this request saying that most of the time, Councilors vote to suspend Council Rules in order not to have to read the ordinance into the record.

A motion was made by Councilor Girard and seconded by Councilor Matteau that the Claremont City Council hereby amends and readopts its Council Rules as follows: (2/3 vote required)

45. - Readings.

Ordinances shall not be passed until they shall have been read twice. At the first reading the explanation of proposed ordinance or the ordinance in its entirety may be read. At the second reading, the entirety of the ordinance will be read, prior to the public hearing, which is to be held on a separate day at regular meeting of the Council, unless otherwise required. The second reading to be only after advertisement of the ordinance and public hearing.

No ordinance shall be revived or reenacted by mere reference to the title thereof, but the same shall be set forth at length as if it were an original ordinance. No ordinance shall be amended by providing that designated words thereof shall be stricken out and others inserted in lieu thereof, but the ordinance or section as amended shall be set forth in full.

Mayor Lovett said the way this written, on second reading, there may still be requests to suspend Council Rules in order not to read the ordinance into the record.

Roll call vote:

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - no

Stone - yes

Lovett - yes

Motion carried 6-1.

COMMITTEE REPORTS

None

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Koloski shared a citizen concern that Broad Street is dangerous, going from two lanes down to one lane.

Mayor Lovett said in the July 14 minutes that Councilor Stone had requested a Non-Public Session in August. She asked how the Councilors wanted to do that.

Councilors agreed that it should be on its own night. Mayor Lovett will look at potential dates and will send them out to Councilors.

Mayor Lovett would like to get an overview of housing, what affordable housing is. The Governor's Council on Housing Stability issued a report on June 30th. She said it would be good for all to understand what affordable housing is to our community.

Councilor Koloski said the NH Housing Finance Authority has someone that could explain that to the Council.

Councilor Matteau said they also do annual rental surveys across the state. She would like to know the number of housing rental units there are in Claremont and how many are off line for whatever reason (condemned, vacant).

Mr. Morris read the action item list:

- Topstone reconsideration second meeting in August
- Work with Conservation Commission and Public Works on changes to the Tree Policy and then get it written up
- Wednesday, August 18, 6:00 p.m. special meeting for Compensation Study
- Resolution to transfer funds for Zoom staffing
- Overview of housing needs
 - What affordable housing is
 - Governor's Council on housing
 - Housing rental units we currently have in the City
 - Rental survey
- Reach out to NH Housing
- Mayor Lovett said she will work with Ms. Russell for possible dates for the other stand-alone meeting

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:10 p.m., a motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to adjourn.

Roll call vote:

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 7-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council